25CV07072 The Estate of Nicholas Brown, et al. v. The Ritz-Carlton Holtel Company, LLC, et al.

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Motion: Motion to Compel Arbitration

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Wed, 07/01/2026 - 10:00

Nature of Proceedings

Motion to Compel Arbitration

Tentative Ruling

For Plaintiffs The Estate of Nicholas Brown, Jerish Brown, individually and as heir, and Jesse Sirkus-Brown, individually and as heir: Robert J. Stoll, Jr., Robert J. Stoll, III, Matthew C. Stoll, The Stoll Law Firm

For Plaintiff Gabriella Taylor, individually and as heir and successor in interest of Nicholas Brown: A. Barry Cappello, Leila J. Noel, G. Michael Brelje, David Edholm Cappello & Noel LLP

For Defendants The Ritz-Carlton Hotel Company, LLC, Marriott International, Inc., Ruby SB Hotel LLC, and Bradley Cance: Madeline J. Suchard, Cozen O’Connor

RULING

For all reasons stated herein, the motion to compel arbitration by Defendants The Ritz-Carlton Hotel Company, LLC, Marriott International, Inc., Ruby SB Hotel LLC, and Bradley Cance is denied.

Background

This action arises out of the alleged wrongful death of Nicholas Brown (Nicholas). On November 12, 2025, a complaint (the Estate Action) was filed by the following Plaintiffs: The Estate of Nicholas Brown (the Estate); Gabriella Taylor (Taylor), surviving spouse of Nicholas, in her individual capacity and in her capacity as heir and successor in interest of Nicholas; and Jerish Brown (Jerish) and Jesse Sirkus-Brown (Jesse), surviving sons of Nicholas, in their individual capacity and in their capacity as heirs. Jerish and Jesse are beneficiaries and coexecutors of the Estate. (Note: Due to common surnames, the Court refers to some individuals by their first names or abbreviations for clarity. No disrespect is intended.)

The initial complaint named Defendants The Ritz-Carlton Hotel Company, LLC (Ritz), and Mariott International, Inc. (Mariott), and alleged these Defendants were the owners or operators of the Ritz-Carlton Bacara, Santa Barbara (Resort). The events at issue in this action allegedly took place at the Resort on September 5, 2025.

On February 11, 2026, despite being a Plaintiff in this case pertaining to the same transactions and issues, Taylor filed second complaint (Tay. Compl.) in a separate action (Taylor Action), Santa Barbara Case No. 26CV00938, against Ritz, Mariott, and additional Defendants Ruby SB Hotel, LLC (Ruby), another entity allegedly affiliated with the operation of the Resort, and Bradley Cance (Cance), the Resort general manager (Ritz, Mariott, Ruby and Cance are collectively referred to herein as Defendants).

On March 18, 2026, the Estate Action and the Taylor Action were consolidated by Court order and agreement of the parties.

On March 25, 2026, a first amended complaint (FAC) was filed in the Estate Action adding Ruby and Cance as Defendants. The FAC appears to be asserted only on behalf of Jerish and Jesse.

The FAC in the Estate Action and the complaint in the Taylor Action make virtually identical allegations and set forth the same five causes of action for (1) wrongful death, (2) elder abuse, (3) gross negligence, (4) infliction of emotional distress, and (5) conversion.

As alleged in the Estate Action and the Taylor Action:

Prior to his death, Nicholas was the spouse of Taylor. (FAC & Tay. Comp., ¶ 13.) Since 2022, Nicholas and Taylor were members at the Resort, which is owned, managed, or operated by Defendants. (FAC & Tay. Compl., ¶¶ 1, 5-9, 13.) During their time as members, Nicholas regularly visited the Resort. (FAC & Tay. Comp., ¶ 13.) Nicholas frequently arrived at the Resort when it opened at 6:00 a.m. and left after it closed at 6:00 p.m. (FAC & Tay. Comp., ¶ 14.) Nicholas typically worked on-premises at the Resort from an indoor workspace or outside near the pool, and interacted with staff throughout the day. (Ibid.) The Resort staff was familiar with Nicholas. (FAC & Tay. Comp., ¶ 13.)

On September 5, 2025, Nicholas arrived at the Resort with his bag and personal items. (FAC & Tay. Comp., ¶ 15.) Resort staff recognized Nicholas was unwell, lethargic, limping, and showing other signs of acute physical distress. (Ibid.) A Resort staff member initiated a wellness check. (Ibid.) However, despite his obvious distress, Nicholas was not given any medical aid, 911 dispatch was not contacted, and Taylor or other emergency contacts were not contacted. (FAC & Tay. Comp., ¶¶ 16-21.) Nicholas was allowed to enter the sauna which was operating at an unsafe temperature. (Ibid.) Resort staff failed to exercise due care given the condition of Nicholas. (Ibid.)

Nicholas' nonresponsive body was subsequently discovered in the sauna by another patron who immediately reported the situation to Resort staff. (FAC and Tay. Comp., ¶ 21.) Resort staff failed to take appropriate life saving measures and were not adequately trained. (FAC & Tay. Compl., ¶ 22.) Resort staff failed to remove Nicholas from the sauna. (Ibid.) Later, emergency medical technicians arrived at the scene, attempted life-saving procedures, and took Nicholas to the hospital where he was pronounced dead. (FAC & Tay. Compl., ¶ 23.)

When Taylor arrived home in the evening and noted Nicholas' absence and his missing car, she called the Resort. (FAC and Tay. Compl., ¶ 24.) After placing Taylor on hold, a Resort staff member picked up the call and told Taylor, "Body identified as Nicholas Brown found in steam room. Call the sheriff." (Ibid.) The staff member then abruptly hung up. (Ibid.) Taylor asked for further information over the coming days and for Nicholas' personal effects but the Resort refused to cooperate. (FAC & Tay. Compl., ¶ 27.) The Resort refused to return Nicholas' personal effects without a subpoena or Court order. (FAC & Tay. Compl., ¶ 28.) Nicholas' personal effects have not been returned. (FAC & Tay. Compl., ¶ 29.) The incident caused extreme stress to Taylor. (FAC, ¶¶ 26-27.)

On April 24, 2026, Defendnats filed a motion to compel arbitration based on an arbitration clause found within the Resort membership agreement signed by Nicholas and Taylor. Plaintiffs in the Estate Action and the Taylor Action oppose this motion.

Analysis

(1) Standard of Review

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the Court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement—either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b))—that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense." (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.) "In these summary proceedings, the trial Court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the Court's discretion, to reach a final determination." (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.)

"Private arbitration is a matter of agreement between the parties and is governed by contract law." (Platt Pacific, Inc. v. Andelson (1993) 6 Cal.4th 307, 313.) "There is no public policy favoring arbitration of disputes which the parties have not agreed to arbitrate…. Whether the parties formed a valid agreement to arbitrate is determined under general California contract law. [Citations.] Hence, when ruling on a petition to compel arbitration, the superior Court may consider evidence on factual issues such as contract formation bearing on the threshold issue of arbitrability." (City of Vista v. Sutro & Co. (1997) 52 Cal.App.4th 401, 407.) "Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (Fleming v. Oliphant Financial, LLC (2023) 88 Cal.App.5th 13, 19, internal quotation marks omitted.)

"The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate a dispute exists." (Trinity v. Life Ins. Co. of North America (2022) 78 Cal.App.5th 1111, 1120.) "It is essential to the existence of a contract that there should be: [¶] 1. Parties capable of contracting; [¶] 2. Their consent; [¶] 3. A lawful object; and, [¶] 4. A sufficient cause or consideration." (Civ. Code, § 1550.)

"The consent of the parties to a contract must be: [¶] 1. Free; [¶] 2. Mutual; and, [¶] 3. Communicated by each to the other." (Civ. Code, § 1565.) "Consent is not mutual, unless the parties all agree upon the same thing in the same sense…." (Civ. Code, § 1580.) "The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe. [Citation.] Accordingly, the primary focus in determining the existence of mutual consent is upon the acts of the parties involved." (Monster Energy Co. v.

Schechter (2019) 7 Cal.5th 781, 789.) If consent to arbitrate is established, subject to certain exceptions and generally applicable contract defenses, "the Court shall order the petitioner and the respondent to arbitrate the controversy …." (Code Civ. Proc., § 1281.2.)

(2) The Arbitration Agreement Was Signed by Nicholas and Taylor

"[A] party seeking arbitration can carry its initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature. [Citations.] The party seeking arbitration need not follow the normal procedures of document authentication and need only allege the existence of an agreement and support the allegation as provided in rule [3.1330]." (Ramirez v. Golden Queen Mining Co., LLC (2024) 102 Cal.App.5th 821, 831 (Ramirez), internal quotation marks omitted.)

"A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.)

"When the burden has shifted to the party opposing arbitration, that party must 'identify a factual dispute as to the agreement's existence' and must present admissible evidence to support the existence of that factual dispute. [Citation.] For example, if a party disputes the authenticity of his or her signatures, the party 'must offer admissible evidence creating a factual dispute as to the authenticity of the[ ] signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.' "

(Ramirez, supra, 102 Cal.App.5th at pp. 832–833.)

Here, the arbitration clause (Arbitration Agreement) is contained within a document entitled "Club Membership Agreement." (Cance Decl., Ex. B.) The Club Membership Agreement describes the contracting parties, in part: "THIS RITZ-CARLTON BACARA, SANTA BARBARA MEMBERSHIP CONTRACT … GOVERNS THE RELATIONSHIP BETWEEN THE RESORT OWNER, SANTA BARBARA HOTEL OPERATOR, INC. … ACTING THROUGH THE RITZ-CARLTON HOTEL COMPANY, L.L.C. … MANAGER OF THE RITZ-CARLTON BACARA, SANTA BARBARA … AND THE MEMBER(S) EXECUTING THIS CONTRACT. IT CONTAINS THE TERMS AND CONDITIONS APPLICABLE TO THE MEMBERSHIP." (Cance Decl., Ex. B at p. 1.)

Defendants submit evidence that the Club Membership Agreement was signed by a Resort manager, Nicholas and Taylor in September 2022. (Cance Decl., ¶¶ 4-17, Exs. A-B.) Plaintiffs present no evidence to create a factual dispute over whether Nicholas and Taylor signed the Arbitration Agreement. The Court finds that Defendants carried their burden to demonstrate an executed agreement with the Resort to arbitrate as to Nicholas and Taylor.

Section T of the Club Membership Agreement contains the Arbitration Agreement as follows:

"The parties agree that, subject to the exclusion of the intellectual property rights of the Resort, as set forth below, any dispute in any way arising out of or relating to Membership or any Member or its family members of guests will be resolved by arbitration before JAMS or the American Arbitration Association in Santa

Barbara, California, before a single arbitrator; provided, however, a dispute relating to the patents, trademarks, trade dress, copyrights, trade secrets, false advertising, false representation, unfair competition and/or infringement of intellectual property rights of the Resort, Manager or Owner, as the case may be, shall not be subject to this provision. The parties further agree that (i) in any arbitration proceeding they may conduct reasonable discovery pursuant to the arbitration rules, (ii) the laws of California will be the governing law, and

(iii) any arbitration award will be enforceable in state or federal Court. Disputes shall be arbitrated on an individual basis, with there being no right or authority for any disputes to be arbitrated on a class action basis or in a purported representative capacity on behalf of the general public, other travel suppliers or other entities

similarly situated; Member hereby fully and irrevocably waives any right to initiate or participate in a class action against Manager, Owner, or any Hotel Party." (Cance Decl., Ex. B at p. 10, bold in original.)

(3) The Wrongful Death Claims Asserted by Jerish and Jesse Are not Subject to the Arbitration Agreement

"In California, a wrongful death claim is an independent claim. Unlike some jurisdictions wherein wrongful death actions are derivative, Code of Civil Procedure section 377.60 creates a new cause of action in favor of the heirs as beneficiaries, based upon their own independent pecuniary injury suffered by loss of a relative, and distinct from any the deceased might have maintained had he survived." (Avila v. Southern California Specialty Care, Inc. (2018) 20 Cal.App.5th 835, 844 (Avila).) "In California, wrongful death claims, unlike survivor claims, are not derivative of the decedent's own claims; they are, rather, independent statutory actions accruing to a decedent's heirs for pecuniary injuries suffered by the loss of a relative." (Holland v. Silverscreen Healthcare, Inc. (2025) 18 Cal.5th 364, 375.)

Wrongful death claims brought by nonsignatory heirs are generally not subject to arbitration. (See Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC (2007) 150 Cal.App.4th 469, 474 (Fitzhugh).) " 'The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration. [Citation.]' " (Buckner v. Tamarin (2002) 98 Cal.App.4th 140, 142.) Absent "the existence of an agency or similar relationship between the nonsignatory and one of the parties to the arbitration agreement … Courts have refused to hold nonsignatories to arbitration agreements." (Id.)

Here, Defendants concede that Jerish and Jesse are nonsignatories to the Arbitration Agreement. (See Motion, p. 9, ll. 4-10.) There is no evidence of any agency relationship between Jerish and Jesse, adult sons of Nicholas, and any signatory to the Arbitration Agreement. "[B]ecause [Jerish] and [Jesse] did not sign the arbitration agreements, there is no basis to infer that they waived their personal right to jury trial on the wrongful death claim." (Fitzhugh, supra, 150 Cal.App.4th at p. 474.)

Defendants argue that Jerish and Jesse can nonetheless be compelled to arbitrate these claims on the basis of equitable estoppel. As argued by Defendants, the wrongful death claims by Jerish and Jesse would not exist but for the relationship between the Resort and their late father, Nicholas. However, as discussed below, the case law does not support these equitable estoppel arguments.

"Under the doctrine of equitable estoppel, 'if a Plaintiff relies on the terms of an agreement to assert his or her claims against a nonsignatory Defendant, the Plaintiff may be equitably estopped from repudiating the arbitration clause of that very agreement.' " (Molecular Analytical Systems v. Ciphergen Biosystems, Inc. (2010) 186 Cal.App.4th 696, 714.) "For the doctrine to apply, 'the claims the Plaintiff asserts against the nonsignatory must be dependent upon, or founded in and inextricably intertwined with, the underlying contractual obligations of the agreement containing the arbitration clause.' " (Id. at p. 715.) "[A] nonsignatory Defendant may invoke an arbitration clause to compel a signatory Plaintiff to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (Boucher v. Alliance Title Co., Inc. (2005) 127 Cal.App.4th 262, 271.)

This doctrine has been extended to situations involving nonsignatory Plaintiffs, such as Jerish and Jesse, when the Plaintiff is suing on the contract containing the arbitration clause. "When that Plaintiff is suing on a contract—on the basis that, even though the Plaintiff was not a party to the contract, the Plaintiff is nonetheless entitled to recover for its breach, the Plaintiff should be equitably estopped from repudiating the contract's arbitration clause." (JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1239–1240.)

Here, Jesse and Jarish are not seeking to enforce the contract containing the Arbitration Agreement. Jarish and Jesse are nonsignatory Plaintiffs seeking to avoid arbitration, not nonsignatory Defendants seeking to impose the arbitration agreement on a signatory Plaintiff. The estoppel cases cited by Defendants are inapposite. Equitable estoppel does not apply.

(4) The Survivorship Claims and the Claims by Taylor Are Within the Scope of the Arbitration Agreement

Unlike wrongful death claims, survivorship claims are asserted by a decedent's personal representative or successor in interest on behalf of the decedent. (Code Civ. Proc., § 377.30.) "Unlike a cause of action for wrongful death, a survivor cause of action is not a new cause of action that vests in the heirs on the death of the decedent. It is instead a separate and distinct cause of action which belonged to the decedent before death but, by statute, survives that event." (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1264.)

Here, the events allegedly resulting in the wrongful death of Nicholas occurred while Nicholas was utilizing the services covered by the Club Membership Agreement. (Cance Decl., Exs. A-B; FAC & Tay. Compl., ¶¶ 13-29.) The Arbitration Agreement within the Club Membership Agreement covers "any dispute in any way arising out of or relating to Membership or any Member or its family members of guests." (Cance Decl., Ex. B at p. 10.) The survivorship claims and claims asserted on behalf of the Estate fall within the scope of the Arbitration Agreement based on the signature of Nicholas. Moreover, since Taylor is also a signatory, Taylor's claims (including her wrongful death claims) also fall within the Arbitration Agreement. (Cance Decl., Ex. B.)

(5) The Court's Discretion

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the Court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] … [¶] [a] party to the arbitration agreement is also a party to a pending Court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact…." (Code Civ. Proc., § 1281.2, subd. (c).)

Here, the Resort and its affiliates are in litigation with parties to the arbitration agreement (survivorship claims on behalf of Nicholas and Taylor's claims) and nonsignatories (i.e., third parties, Jerish and Jesse's wrongful death claims) over the same transactions or series of related transactions. Having two separate trials on these two sets of claims would create the possibility of conflicting rulings. "Indeed, if the survivor claims are ordered to arbitration but [Jerish and Jesse's] wrongful death claim was not, there is a possibility of inconsistent rulings …." (Daniels v. Sunrise Senior Living, Inc. (2013) 212 Cal.App.4th 674, 686 (Daniels).)

"If the Court determines that a party to the arbitration is also a party to litigation in a pending Court action or special proceeding with a third party as set forth under subdivision (c), the Court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending Court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the Court action or special proceeding." (Code Civ. Proc., § 1281.2.)

The reasoning in Hearden v. Windsor Redding Care Center, LLC (2024) 103 Cal.App.5th 1010, at pages 1017 through 1018 (Hearden), is applicable to the facts before the Court:

"The first amended complaint alleged injuries to [the decedent] and also to her sons. The claims for injuries to [the decedent] are survivor claims, i.e., claims for relief that belonged to [decedent], are based on her legal rights, survived her death, and passed to her successors in interest. [Citations.] But the wrongful death cause of action alleged injuries to [decedent's] sons personally. … Moreover, [decedent's] sons did not sign, and are not parties to, the arbitration agreement. [Decedent's] sons are third parties to the arbitration agreement with regard to their wrongful death claims. [Citation.]

“Section 1281.2, subdivision (c) gives a trial Court discretion to deny a motion to compel arbitration as to all or part of an arbitrable controversy when ‘[a] party to the arbitration agreement is also a party to a pending Court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.’ … Because [decedent’s] sons are third parties to the arbitration agreement with regard to their wrongful death claim, and the wrongful death claim arose from the same facts as [decedent’s survivorship] elder abuse claim, which the trial ruled was arbitrable, the trial Court had discretion under section 1281.2, subdivision (c) to deny Defendants’ motion to avoid conflicting rulings. [Citations.] [¶] The trial Court appropriately exercised its discretion in denying the motion to compel arbitration.”

The Court also finds the reasoning in Avila and cases cited therein persuasive: “Here, all three factors were met. Both parties are litigants in both the survivorship and wrongful death claims. Those claims involve the same set of operative facts. If the survivorship claims were arbitrated while the wrongful death claim was litigated, there is a strong possibility of inconsistent rulings. The Courts in Daniels, supra, 212 Cal.App.4th at page 680 … and Fitzhugh, supra, 150 Cal.App.4th at page 476 … each reached the same conclusion. We find, accordingly, no abuse of the Court’s discretion.” (Avila, supra, 20 Cal.App.5th at p. 845.)

The Court cannot compel two of the wrongful death Plaintiffs, Jerish and Jesse, to arbitration because they are nonsignatories. The third wrongful death Plaintiff, Taylor, is a signatory. “The wrongful death statute has been interpreted to authorize only a single action, in which all the decedent’s heirs must join.” (Romero v. Pacific Gas & Electric Co. (2007) 156 Cal.App.4th 211, 216.) Under these circumstances, the Court declines to split the wrongful death claims into two separate actions. The Court further declines to split the survivorship claims and wrongful death claims into separate actions. The Court exercises its discretion to deny the motion to compel arbitration to avoid the possibility of inconsistent rulings. (See Hearden, supra, 103 Cal.App.5th at pp. 1017–1018; Code Civ. Proc. § 1281.2, subd. (c).)

Judges

Judge Thomas Anderle

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